

1933 SCC OnLine Lah 533 : AIR 1934 Lah 84 (1)

Lahore High Court
(BEFORE DALIP SINGH, J.)

Jiwa Ram ... Appellant;

Versus

Man Singh and others ... Respondents.

Second Appeal No. 2093 of 1931

Decided on November 8, 1933

JUDGMENT

1. The facts are given in the judgment of the learned District Judge. The learned counsel contends that there was no plea of estoppel and the District Judge could not raise it for the first time in appeal without notice to the appellant. The plea is not really one of estoppel strictly speaking. It is an inconsistent and inequitable plea to allow the plaintiff to say that he shall get the benefit of his own breach of contract and at the same time enforce his contract against the defendants. Hence there is no force in this point. Similarly as regards the property other than the property marked in red by the District Judge the finding is that the hedge is not proved to be more than 12 years old, hence there is no adverse possession. The cross-objections similarly have no force. It is contended that exclusive possession by a cosharer is not an assertion of exclusive title. This is correct, and what amounts to ouster is a question of fact depending on the circumstances of each case. The plaintiff has built his residential house on this land, and in the circumstances I think this amounts to an assertion of hostile and exclusive title to the knowledge of the cosharers. I therefore dismiss the appeal, and cross objection.

2. No order as to costs.

K.S.

3. *Appeal dismissed.*

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